
**PUBLIC SECTOR
STANDARD CONDITIONS OF CONTRACT
FOR DESIGN AND BUILD
(Seventh Edition July 2020)**

SUPPLEMENT

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APPENDIX

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Clause 4.4(2) was amended on 21 June 2024. Refer to the List of Amendments for PSSCOC for Design and Build Works 2020 (7th Edition Jul 2020) for amendments made.

CLAUSE

CONFIDENTIALITY OF INFORMATION 4.9(1)
SUPPLIED TO CONTRACTOR

Confidential Information

All information that the Contractor has obtained, to which the Contractor has had access, owing to his position as a Contractor under the Contract, but does not include information that is:

(a) or has become public knowledge otherwise than through breach of agreement or other legal obligation or through the default or negligence of the Contractor or any Authorised Recipient;

(b) lawfully in the possession of the Contractor or already known to the Contractor on a non-confidential basis prior to the Contractor receiving or obtaining such information as a result of entering into the Contract, as evidenced by written records; or

(c) independently developed by the Contractor.

.....

Clause 4.9 was added on 21 June 2024. Refer to the List of Amendments for PSSCOC for Design and Build Works 2020 (7th Edition Jul 2020) for amendments made.

TIME FOR COMPLETION 14.1

Whole of the Works

.....

Phase or Part of the Works

.....

.....

.....

.....

.....

.....

CLAUSE

LIQUIDATED DAMAGES

16.1

(The cumulative amount of liquidated damages payable by the Contractor for all occasions of delay under the Contract shall not exceed \$50m or the Contract Sum, whichever is lower.)

Whole of the Works

.....

Phase or Part of the Works

.....

.....

.....

.....

.....

.....

DEFECTS LIABILITY PERIOD
(12 months if none stated)

18.1

.....

DESIGN FEE PERCENTAGE OF
VALUE OF WORKS

20.1(a)

Type of Design	Design fee percentage of the value of the varied work
Architectural	
Civil & Structural	
Mechanical Engineering	
Electrical Engineering	
All in rate	

LIMITATIONS ON EXTENT OF
LIABILITY FOR ANY ONE
ACCIDENT

27.1(1)(b)

.....

PERIOD FOR HONOURING
CERTIFICATE
(21 days if none stated)

32.6

.....

RATE OF INTEREST UPON
UNPAID SUMS

32.6

.....

CLAUSE

FLUCTUATIONS

33.1

Specified Materials

Concrete
Steel Reinforcements
Structural Steel (Optional)

Material Price Indices published by

Building and Construction Authority
(for Concrete and Steel Reinforcements)

Import Price Index of Manufactured Goods for
'Iron & Steel' as published by the Singapore
Department of Statistics (for Structural Steel)

Tender Closing Month

.....

Base Unit Rate of Materials

(to be filled in by bidders or to be indicated by Employer where relevant)*

Concrete

\$/...../m³

Steel Reinforcements

\$/...../tonne

Structural Steel

\$/...../tonne

Clause 33.1(1) was amended w.e.f. 01 January 2023. Refer to the List of Amendments for PSSCOC for Design and Build Works 2020 (7th Edition Jul 2020) for amendments made.

MEDIATION CENTRE**

35.6(1)

.....

Clause 35.6(1) in Appendix was amended on 21 June 2024. Refer to the List of Amendments for PSSCOC for Design and Build Works 2020 (7th Edition Jul 2020) for amendments made.

COMPLIANCE WITH WORKPLACE SAFETY AND HEALTH ("WSH") REQUIREMENTS

40

WSH trainings

40.1

(a) Conduct WSH briefings for each new worker before deployment to work at the Site and periodic WSH briefings (e.g. daily toolbox meetings) on all matters, in-house rules and the necessary precautions in special circumstances to ensure workers work safely at the Site. Special circumstances refer to any abnormal working environment or situation that could occur on the construction site.

CLAUSE

WSH trainings	40.1	(b) Provide each worker with WSH training, being foundation safety orientation courses as well as training beyond the foundation safety orientation courses, based on the project needs as required by the Superintending Officer. The list of accredited WSH courses and training providers is published by MOM.
List of activities	40.2	(a) Provide to the Superintending Officer periodic reports at the frequency determined by the Superintending Officer (e.g. monthly or quarterly reports) containing assessments of WSH performance of the Contractor and all subcontractors at the Site. (b) Conduct regular sessions e.g. weekly or monthly meetings with the subcontractors' authorised representative (who is at least a manager in terms of seniority) and the Superintending Officer to discuss WSH performance and issues. (c) Identify poor performing subcontractors; provide to the Superintending Officer for approval a subcontractor management action plan that sets out the procedures for the oversight, supervision and coordination of the subcontractors; and carry out such approved plans. This would include rectifying the safety lapses and carrying out preventive measures to avoid recurrence.
WSH Proposals	40.3	(a) Conduct risk assessment in relation to the safety and health risks posed to any person who may be affected by the works and activities of the Contractor and subcontractors (whether directly or indirectly appointed by the Contractor) at the Site and submit a report to the Superintending Officer for approval. (b) Establish method statements for each safety-critical work activity identified with relevant risk assessments conducted and provide a copy to the Superintending Officer for approval. (c) Inform all subcontractors, subcontractors' workers involved in the work activities at the Site on the nature of risks involved and ensure compliance with the method statement.

Clause 40 was added on 21 June 2024. Refer to the List of Amendments for PSSCOC for Design and Build Works 2020 (7th Edition Jul 2020) for amendments made.

CLAUSE

ADVANCE PAYMENT*** (if not stated, it shall be 20 % of the PPVC costs priced by the Contractor up to 10% of the Contract Sum)	B1.0(2)	% of the PPVC costs, capped at% of Contract Sum
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Form of Advance Payment Guarantee***	B1.0(2)	eGuarantee Template (Reference Code: GOV_UT from https://www.eguarantee.gov.sg/)* or Guarantee Template for Bank or MAS approved insurance company*
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Clause B1.0(2) was amended on 21 June 2024. Refer to the List of Amendments for PSSCOC for Design and Build Works 2020 (7th Edition Jul 2020) for amendments made.

RECOVERY PERIOD*** (within 12 months after the recovery start date if none stated)	B2.0(1) / B5.0	 months
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INTERVALS FOR REPAYMENT OF THE ADVANCE PAYMENT*** (monthly if none stated)	B5.0	
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RECOVERY START DATE*** (4 months after the date of the Letter of Acceptance if none stated)	B5.0	 months after the date of the Letter of Acceptance
--	------	---

* To delete accordingly

** To insert the name of a mediation centre acceptable to both parties. Possible options include the Singapore Mediation Centre, Singapore International Mediation Centre, Singapore Construction Mediation Centre Pte Ltd, or other mediation service conducted by an organisation acceptable to both parties.

*** To delete unless Option Module B is used

FORM OF TENDER

FORM OF TENDER

NAME OF CONTRACT: *
.....
TO: *
.....
.....

Gentlemen,

1. Having examined the Tender Documents comprising:

- (a) the Instructions to Tenderers
- (b) the Employer's Requirements;
- (c) the Agreement;
- (d) the Conditions of Contract comprising
 - (i) the Public Sector Standard Conditions of Contract for Design and Build;
 - (ii) the Particular Conditions
 - (iii) the Appendix;
- (d) the Specifications;
- (e) the Drawings;
- (f) the Bills of Quantities/Schedule of Rates* ; and
- (g) the Addenda Nos.....

for the execution of the above-named Works we the undersigned offer and undertake, on your acceptance of this Tender Offer, to design, execute, and complete the Works, and remedy any defects therein in conformity with the Employer's Requirements, the Agreement, the Conditions of Contract, Specifications, Drawings, Bills of Quantities/Schedule of Rates* and Addenda for the Sum of:

.....
.....
.....
(.....)

[Version A: To be used if the procuring entity requires all Tender Offers (including alternative offers) to be compliant offers. A compliant offer is one with no qualifications or variations to the Invitation to Tender and in full compliance with the Specifications.]

2. Our Tender Offer is fully consistent with and does not contradict or derogate from anything in the Tender Documents. We may include in our Tender Offer alternative offer(s) which comply with the Tender Documents.

[Version B: To be used if the procuring entity is open to considering non-compliant offers, provided that the Tenderer has submitted at least one compliant offer. A non-compliant offer is one which (i) contains qualifications or variations to the Invitation to Tender or (ii) does not fully comply with the Specifications.]

2. Our Tender Offer includes at least one offer which is fully consistent with and does not contradict or derogate from anything in the Tender Documents. We may include in our Tender Offer, alternative offer(s) which include qualifications or variations permitted under the Tender Documents.

3. We undertake if our Tender is accepted to commence the Works on the date or dates specified in the Employer's Letter of Acceptance and if there is no such date or dates then as soon as is reasonably possible after the receipt of an order to that effect from the Superintending Officer and to complete the whole of the Works comprised within the Contract by the Time for Completion or Times for Completion stated in the Appendix.

4. Our offer is valid for the Validity Period as specified in the Instructions to Tenderers and for any such extension of the period as may be mutually agreed in writing.

5. Where required by you, we shall execute a formal agreement in the appropriate form incorporating the terms and conditions as agreed upon between you and us. Until the said formal agreement is executed,

this Tender Offer together with your written acceptance, shall constitute a binding agreement between us.

6. We understand that you are not bound to accept the lowest or any tender you may receive.
7. We further undertake to give you any further information which you may require.
8. We warrant, represent and declare that we have the power to enter into, perform and deliver, and have taken all necessary action to authorise our entry into, performance and delivery of, the binding agreement upon your written acceptance of our Tender Offer.

Dated this day of 20.....

Name:

*Signature in the capacity of
duly authorised to sign Tender Offers for and on behalf of
.....
(IN BLOCK LETTERS)

*Tenderer's official stamp:

Address:
.....

Witness:

Address:.....

Occupation:

9. Our Service Address (as referred in Clause 37.2(1) of the Standard Conditions) is

.....

.....

Our telephone number is.....

Our cable/telex number is.....

Our facsimile number is.....

*(Note: All details marked * shall be inserted before issue of Tender Documents or deleted as appropriate).*

[No handwritten signature or company stamp is required for documents submitted through GeBIZ. The Government/Statutory Board shall be entitled to rely on the use or entry of the prescribed Authentication Device (as defined in the Terms and Conditions For Use Of The Government Electronic Business) by the Tenderer or its representative(s) as the authorised signature of the Tenderer, as conclusive evidence of the authenticity of the submitted document and the authority of the originator of the submitted document.]

AGREEMENT

AGREEMENT

THIS AGREEMENT is made the day of

Between.....
.....
of.....
.....
(hereinafter called "the Employer") of the one part and
.....
of
.....
(hereinafter called "the Contractor") of the other part.

Whereas

Recitals

First the Employer is desirous of obtaining the construction of [the following works] [a]
..... (hereinafter called 'the Works') at
.....
.....
..... for which he has issued to the Contractor his requirements (hereinafter referred to as "Employer's Requirements").

Second the Contractor has submitted his developed design documents for carrying out the Works [works referred to in the First recital] (hereinafter referred to as "the Contractor's Proposals") which includes the statement of the sum which he will require for carrying out that which is necessary for completing all the Works in accordance with the Conditions [(which is the Contract Sum stated in Article 3)] .

Third the Employer has relied on the Contractor in the development of the Contractor's Proposals to fully meet the suitability, adequacy, integrity, durability and practicality of the Employer's Requirements and having examined the Contractor's Proposals and, subject to the Conditions, is satisfied that they meet the Employer's Requirements.

For the avoidance of doubt, it is expressly agreed that the giving of any consent or approval by or on behalf of the Superintending Officer shall not in any way relieve the Contractor of any of his obligations under the Contract or his duty to ensure the correctness, accuracy or suitability of the matter or this which is the subject of the consent or approval.

Fourth, the Employer has accordingly accepted a Tender by the Contractor for the design execution and completion of such Works and remedying any defects therein.

Now it is hereby agreed as follows:

Article 1 Contract

1. In this Agreement words and expression shall have the same meaning as are respectively assigned to them in the Conditions of Contract herein after referred to.

Article 2 Contractor's obligations

2. For the consideration mentioned in Article 3 the Contractor hereby covenants with the Employer to both complete the design for the Works and execute and complete the construction of the Works and remedy any defects therein in conformity in all respects with the provisions of the Contract.

Article 3 Contract Sum

3. The Employer hereby covenants to pay the Contractor in consideration of the design execution and completion of the Works and the remedying of defects therein, the Lump-Sum of
.....
.....
(Singapore Dollars) (hereinafter referred to as 'the Contract Sum') or such other sum as shall become payable hereunder at the times and in the manner specified by the Contract.

Article 4 Employer's Design Requirements and Contractor's Proposals

4. The Employer's Requirements and the Contractor's Proposals have been signed by the parties and are identified in an appendix to the Conditions.

Article 5

5. The following documents shall be deemed to form and be read and construed as part of the Agreement, viz:-

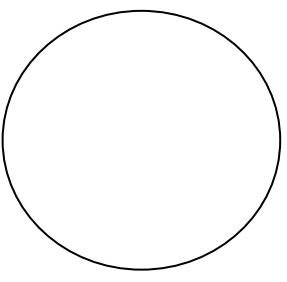
- (1) The Employer's Letter of Acceptance;
- (2) The said Tender;
- (3) The Instructions to Tenderers;
- (4) The Conditions of Contract comprising
 - (a) the Public Sector Standard Condition of Contract for Design and Build;
 - (b) the Particular Conditions;
 - (c) the Appendix;
- (5) The Specifications (if applicable);
- (6) The Drawings (if applicable);
- (7) The Bills of Quantities/Contract Sum Analysis/Schedule of Rates (if applicable);
- (8) The Employer's Requirements;
- (9) The Contractor's Proposals
- (10) The Addenda Nos.....

There aforesaid documents shall be read and construed as a whole and no special priority other than that accorded by law or expressly provided in the Contract documents and shall apply to any one document or group of documents nor shall the contra proferentum rule apply to this Agreement.

IN WITNESS WHEREOF
the day and year first above written
the* (hand of the Employer has been hereunto set)
(Common Seal of the Employer has been hereunto affixed)

*Signed by the said
.....
.....
..... Signature

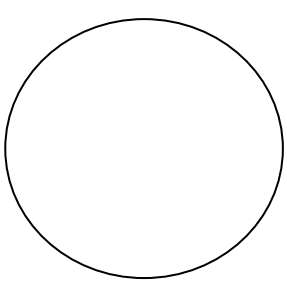
*The Common Seal of
.....
.....
was hereunto affixed in the presence of
Name.....
Address.....
.....
Description.....



(hand of the Contractor has been hereunto set)
and the* (Common Seal of the Contractor has been hereunto affixed)

*Signed by the said
.....
.....
..... Signature

* The Common Seal of
.....
.....
was hereunto affixed in the presence of
Name.....
Address.....
.....
Description.....



* Delete as appropriate

FORM OF SECURITY DEPOSIT GUARANTEE

FORM OF SECURITY DEPOSIT GUARANTEE

To: _____ and his successors in office for and on behalf of the Government of the Republic of Singapore¹ (hereinafter called "the Employer").

Whereas on the ____ day of _____ an agreement (the "**Contract**") was made between _____ (name of Contractor) of _____ (address) (the "**Contractor**") of the one part and the Employer of the other part for _____ (state nature of contract) whereby the Contractor agreed that in consideration of its due and faithful performance of the Contract, it would be paid the sum of Singapore Dollars _____ (S\$ _____) (the "**Contract Sum**").

And Whereas the Contractor is required under the Contract to pay ____ per cent of the Contract Sum as a security deposit for the due and faithful performance of its obligations under the Contract.

The Contractor has opted to provide an irrevocable on-demand guarantee in favour of the Employer as a security deposit for the Contract.

We (at the request of the Contractor) hereby agree as follows:

1 We shall unconditionally pay to the Employer any sum or sums up to a maximum aggregate of Singapore Dollars _____ (S\$ _____) (the "**Guaranteed Sum**") upon receiving your written notice of claim for payment made pursuant to Clause 4 of this Guarantee without any proof of actual default on the part of the Contractor and without need to satisfy any other condition.

2 We shall not be discharged or released from this Guarantee by any arrangement between the Employer and the Contractor with or without our consent, or by any other or further arrangement between the Contractor and us with or without the Employer's consent, or by any alteration in the obligations undertaken or to be undertaken by the Contractor or by any forbearance on the Employer's part whether as to payment, time, performance or otherwise.

3 Our liability under this Guarantee shall continue and this Guarantee shall remain in full force and effect from [*insert effective date:* _____] until [*insert expiry date:* _____] [*insert if expiry date is subject to automatic extension*²: provided always that the expiry date of this Guarantee and our liability under this Guarantee shall be automatically extended for successive periods of [*specify duration of each extension:* _____ days/months] unless we give you 90 days' written notice prior to the expiry of our liability (the "**Notice Period**") of our intention not to extend this Guarantee in respect of any future extension and provided further that you shall be entitled –

- (a) upon receiving such notice of our intention either to:
 - (i) make a claim under this Guarantee; or
 - (ii) *direct us to pay such amount (not exceeding the Guaranteed Sum) as you may specify into a suspense account to be governed and disbursed by us subject to the Association of Banks in Singapore's Guidelines for operation of a Suspense Account; or
- (b) direct us (within the Notice Period) to extend the validity of this Guarantee for a further period not exceeding _____ days/months (and this Guarantee shall then expire at the end of such further period).]

Note: * *Not applicable for insurance bond issued by insurance companies*

4 This Guarantee is conditional upon a claim being made by the Employer at any time and as many times as the Employer may deem fit by way of a notice in writing addressed to us and the same being received by us at _____

¹ Replace this with the name of the Authority if the Authority is a Statutory Board.

² This provision is to be included for contracts which are not fixed period contracts. For fixed period contracts, this provision is not required.

[insert address of Bank's notification office: _____] before the end of 90 days after the expiry of this Guarantee.

5 We shall be obliged to effect the payment required under such a claim within 30 business days of our receipt of the written notice from the Employer. We shall be under no duty to inquire into the reasons, circumstances or authenticity of the grounds for such claim and shall be entitled to rely upon the Employer's written notice received by us as final and conclusive. For the purposes of this Guarantee, "**business day**" means a day other than a Saturday, Sunday, or public holiday in Singapore.

6 The Employer may make more than one claim on this Guarantee so long as the aggregate amount specified in all such claims does not exceed the Guaranteed Sum.

7 This Guarantee is issued subject to the laws of the Republic of Singapore and the exclusive jurisdiction of the Singapore courts.

Dated this _____ day of _____

AS WITNESS our hand

Signed by: _____
(Name and designation of officer)

for and on behalf of the

(Name of **Bank/Insurance Company)

(Signature)

in the presence of:

Name _____

Designation _____

(Signature of Witness)

** Delete whichever is not applicable

FORM OF ADVANCE PAYMENT GUARANTEE

To delete unless Option Module B is used

FORM OF ADVANCE PAYMENT GUARANTEE

To: _____ and his successors in office for and on behalf of the Government of the Republic of Singapore¹ (the “**Employer**”).

Whereas on the ____ day of _____ an agreement (the “**Contract**”) was made between _____ (name of Contractor) of _____ (address) (the “**Contractor**”) of the one part and the Employer of the other part for _____ (state nature of contract).

And Whereas the Employer will pay the Contractor an advance payment in accordance with the Contract of Singapore Dollars _____ (S\$ _____) (the “**Advance Payment**”) in consideration of an irrevocable on-demand guarantee provided by the Contractor in favour of the Employer.

We (at the request of the Contractor) hereby agree as follows:

1 We shall unconditionally pay to the Employer, upon receiving the Employer’s written notice of claim for payment made pursuant to Clause 4 of this Guarantee without any proof of actual default on the part of the Contractor and without need to satisfy any other condition, provided that the Employer has paid the Contractor the Advance Payment in accordance with the Contract and the Employer’s claim or claims do not exceed in aggregate the Advance Payment less any sum –

- (a) previously paid by us to the Employer under this Guarantee; or
- (b) reimbursed or repaid by the Contractor to the Employer under the Contract (including, without limitation, reimbursed or repaid by deduction from a sum otherwise due to the Contractor from the Employer).

2 We shall not be discharged or released from this Guarantee by any arrangement between the Employer and the Contractor with or without our consent, or by any other or further arrangement between the Contractor and us with or without the Employer’s consent, or by any alteration in the obligations undertaken or to be undertaken by the Contractor or by any forbearance on the Employer’s part whether as to payment, time, performance or otherwise.

3 Our liability under this Guarantee shall continue and this Guarantee shall remain in full force and effect from [*insert effective date:* _____] until [*insert expiry date:* _____].

4 This Guarantee is conditional upon a claim being made by the Employer at any time and as many times as the Employer may deem fit by way of a notice in writing addressed to us and the same being received by us at [*insert address of Bank’s notification office:* _____] before the end of 90 days after the expiry of this Guarantee.

5 We shall be obliged to effect the payment required under such a claim within 30 business days of our receipt of the written notice from the Employer. We shall be under no duty to inquire into the reasons, circumstances or authenticity of the grounds for such claim and shall be entitled to rely upon the Employer’s written notice received by us as final and conclusive. For the purposes of this Guarantee, “**business day**” means a day other than a Saturday, Sunday, or public holiday in Singapore.

6 This Guarantee is issued subject to the laws of the Republic of Singapore and the exclusive jurisdiction of the Singapore courts.

¹ Replace this with the name of the Authority if the Authority is a Statutory Board.

Dated this _____ day of _____

AS WITNESS our hand

Signed by: _____
(Name and designation of officer)

for and on behalf of the

(Name of *Bank/Insurance Company)

(Signature)

in the presence of:

Name _____

ID No. _____

(Signature of Witness)

* Delete whichever is not applicable.